

HE Green Paper: response to question 21

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This post is part of an [ongoing series](#) where I intend to develop my full *personal* (not institutional) response to the HE Green Paper. Comments are welcome to refine this.

The Green Paper asks in Question 21:

a) Do you agree with the proposed duties and powers of the Office for Students? Please give reasons for your answer. b) Do you agree with the proposed subscription funding model? Please give reasons for your answer.

Provisional response:

a.)

Although I agree with many of the duties and powers of a proposed Office for Students, there are several problems with the proposed duties and powers of the OfS.

Firstly, and as elsewhere, there is a problem with the haste of this consultation. The implementation of “powers to require providers to meet a baseline level of quality, and to assess the quality of teaching through a Teaching Excellence Framework (TEF)” could be met with a well-founded legal challenge if the proxies used for measurement are contested. For instance, as before, there is already a substantial body of expert evidence, that could be cited in court, that demonstrates the flaws in the proposed proxies.

Secondly, it is problematic that research comes nowhere under the Office for Students. Aside from the fact that the public benefit of research, to both students and broader society, is not adequately recognised in this Green Paper, research postgraduate students are entirely eliminated from any consideration here. The problematic separation of teaching and research throughout this Paper is troubling.

The “power to require providers to meet conditions to protect students in the event of course closure or provider failure, giving students the essential safeguards they need and protecting the taxpayer” is also disingenuous. The true risk here to the public purse is the RAB charge, which will not be eliminated in the event of course closure or provider failure.

The risk-based regulatory framework is also problematic, as far from creating a single system, it stratifies and diversifies the types of audit at different institutions.

The “power, potentially, to validate providers’ courses” is extremely alarming. This seems to conflict with ideas presented elsewhere in the Paper with respect to validation. Please see my answer to part b of question 15 for more on this. I am not sure what expertise would here be used to validate a course and I also worry about anti-competitive tenders in this space.

b.)

The primary rationale given for the regulatory framework is to protect “students, employers and tax payers”. As there is no direct benefit to institutions – and as question 23 seems to wish to totally declassify institutions as public entities – it is unclear on what logical basis this proposal for a subscription funding model might stand.